for one year or fine or both

SECTION 297
When applied: If a person intentionally trespasses any burial place knowing that this act of his may hurt the religious sentiments of any class of citizens
Punishment: Jail up to one year or fine or both

SECTION 298*
When applied: Any person, who intentionally utters any words, makes any sound or signs, visible or audible, to the aggrieved, as to hurt the religious feelings of the person
Punishment: Jail for one year or fine or both

SECTION 153, 153A AND 153 B
When applied: If a person deliberately or wantonly provokes or spread any form of riots or religious enmity
Punishment: Jail up to five years or fine or both

**Unlike other sections, offences under this section are compoundable and non-bailable*

BLASPHEMY LAWS ACROSS THE GLOBE

Currently, more than 70 countries in the world have defined criminal punishments for the offence of blasphemy. Only two countries—Iran and Pakistan—have the provision of capital punishment if commitment of blasphemy is proved. The offence of blasphemy may relate to a particular religion, like in Qatar, or may be towards all religions, like in Denmark

In 1952 the US Supreme Court held that blasphemy is 'unconstitutional'. In 1995 it was abolished in Australia and in England in 2008. The UN condemns nations where blasphemy laws are in place. It accepts the argument that blasphemy laws are used as an instrument to curtail freedom of expression

Illustration by TANMOY CHAKRABORTY

in another case, it asserted that a proximate link between the exercise of speech and public disorder was necessary, not a far-fetched, remote connection.

In 1989, the apex court held that the connection between speech and disorder must resemble that of a "spark in a powder keg". In 2011, it further clarified that only speech that amounted to "incitement to imminent lawless action" could be punished. In the Shreya Singhal judgment in 2015, the SC distinguished between advocacy and incitement and held that the law restricting free speech must be interpreted narrowly, otherwise the chilling effect on free speech would be total.

However, such riders have little impact, as rampant arrests continue under various IPC provisions. Though Section 295A is the one that directly deals with blasphemy, the IPC has an entire chapter for offenses against religion (Chapter 15), from Section 295 to 298. Add to these Sections 153, 153A and 153B, which deal with hate speech. Critics say their use often cannot distinguish between the dissenter and the hatemonger. "Sentiments of over-sensitive people have no relevance. The test is whether an ordinary, prudent man would have felt hurt," says Faizan Mustafa, vice-chancellor of NALSAR University of Law, Hyderabad.

Besides, the current interpretation of Section 295A does not require the government to show that religious sentiments were actually hurt. Mere possibility is enough, leading to rampant lodging of FIRs. "Examination of other ingredients to constitute an offence under this section highly depends on discretion, which is not good for dispensation of justice. We require more specific terms for identifying this charge," says Justice Mathur.

The 2020 annual report of the National Crime Records Bureau notes a 458 per cent jump in cases registered under Section 153A since 2014. It almost doubled between 2018 and 2020, though conviction could be secured in merely 20.4 per cent of cases. There's no separate data on Section 295A, but other indicators are available. A recent study by the Advertising Standard Council of India noted that "a feeling of there being a conspiracy against their faith within people, about hurting religious sentiments, was among the major triggers for complaints against advertisements in the last three years".

THE LEGAL HURDLE

In 2015, BJP leader Subramanian Swamy filed a petition, asking for the hate speech sections to be declared unconstitutional. Legal experts say it could be difficult to get the 1957 ruling on Section 295 overturned. A five-judge bench of the Supreme Court had upheld its constitutionality. Thus, if the court were to change its mind, it would need a bench of at least seven judges. Procedurally, this would require challengers to 295A to first convince a two-judge bench (before which any petition originally goes) that there are sufficient reasons for doubting the correctness of the 1957 judgment. If convinced, this bench would need to refer it to a five-judge bench which, in turn (if convinced), would have to refer it to a seven-judge bench, which would hear the case on merits. So, the only option to get rid of 295A is for Parliament to repeal or amend it. "In a modern liberal democracy, free speech must be considered valuable and, therefore, blasphemy should be decriminalised. Accordingly, Section 295A should be deleted from the IPC," says Professor Mustafa.

Justice Mathur feels the time is not yet ripe to delete Section 295. Instead, he advocates the urgent need for reforms in police and judiciary. "We must make our police more independent and responsible. The judiciary should be highly sensitive while handling these cases.... Fast track courts need to be set up to adjudicate them," he says.

Irrespective of how the judiciary and legislature respond, there is a concurrence that application of Section 295A must have greater clarity to protect it from getting utilised by hypersensitive groups as a tool of intimidation. More than stop-gap arrangements, wider judicial and legislative reforms are required to ensure protection of the ideal of secularism according to the Constitution. ■